

25STCV18482 25STCV18482

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Case Number: 25STCV18482 Hearing Date: August 3, 2026 Dept: 307

14 TENTATIVE RULING 9:00 a.m., Monday, August 3, 2026

BRYANNA

COSTACHE, a minor, by and through her Guardian ad Litem, ANDREEA N. OFTEZ v. CHA
HOLLYWOOD MEDICAL CENTER, L.P., et al. [25STCV18482]

MOTION

FOR SUMMARY JUDGMENT by DEFENDANT CHILDREN'S HOSPITAL LOS ANGELES (DOE 1)

TIMELINE:

Complaint alleges medical malpractice

4/18/2023: Plaintiff Bryanna Costache

("Plaintiff"), a minor, is born via crash Cesarean section ("C-section") at
Defendant CHA Hollywood Medical Center, L.P., dba CHA Hollywood Presbyterian
Medical Center ("CHA"). (Suttner Decl., ¶ 4(a).) Plaintiff's biological
mother, Andreea N. Oftez ("Oftez"), is Plaintiff's guardian ad litem in the
instant lawsuit. (Ibid.)

Plaintiff

alleges that the medical staff at CHA negligently provided obstetric triage to
Oftez, including by failing to offer and perform a timely C-section delivery
despite ongoing fetal intolerance to labor, thereby causing injuries to
Plaintiff, including brain injury and cerebral palsy. (Compl., ¶ 14.) Shortly after
her delivery, Plaintiff was transferred to the neonatal intensive care unit
("NICU") team at CHA, where she presented with heart and respiratory issues and
was diagnosed with severe metabolic acidosis and anemia. (Suttner Decl., ¶¶
4(c)-(d).)

Due to

her critical condition, Plaintiff required an additional transfer from CHA to Defendant Children's Hospital Los Angeles ("CHLA") for further evaluation and treatment, including therapeutic hypothermia. (Id. ¶ 4(f).) Plaintiff's father gave written consent for the transfer. (Id. ¶ 4(g).) The CHLA transport team included Dr. Jared Schiff (an employee of Defendant Children's Hospital Los Angeles Medical Group) and non-physician CHLA employees, Michele Pisarsksy, R.N., Syd Nessary, R.T., and Luis Romero, R.T. (Id. ¶ 4(j).) The CHLA transport team was first contacted at 2:50am. (Id. ¶ 4(h).) Plaintiff was accepted by the CHLA transport team at 3:09am. (Id. ¶ 4(i).) The CHLA transport team left CHLA via ambulance at 3:25am and arrived at Plaintiff's bedside at 3:35am. (Id. ¶¶ 4(j)-(k).)

Dr.

Schiff examined Plaintiff at 3:35am, Plaintiff's vital signs were measured at 3:43am and 3:50am, and the CHLA transport team left with Plaintiff for CHLA at 3:55am. (Suttner Decl., ¶¶ 4(l), (m), (n), (o).) The CHLA transport team arrived at CHLA's ambulance bay at 4:02am. (Id. ¶ 4(q).) At 4:06am, CHLA's NICU team assumed care of Plaintiff. (Id. ¶ 4(r).) At CHLA, Plaintiff was diagnosed with hypoxic ischemic encephalopathy, respiratory failure, suspected sepsis and anemia, and active cooling was initiated at 4:15am. (Id. ¶ 4(s).) An emergency blood transfusion was ordered at 4:17am and administered at 4:36am. (Id. ¶ 4(t).) Plaintiff was then followed by a number of CHLA medical specialists where she remained until her discharge on 6/29/2023. (Id. ¶ 4(u).)

6/25/2025: Plaintiff files the Complaint, alleging a single cause of action for negligence (medical malpractice).

7/16/2025: Plaintiff files an Amendment to the Complaint, identifying CHLA as Doe 1. As to CHLA, Plaintiff only contends that the CHLA transport team who transferred Plaintiff from CHA to CHLA was negligent.

5/4/2026: CHLA files this Motion for Summary Judgment. On 7/14/2026, Plaintiff files a Notice of Non-Opposition to CHLA's Motion.

TENTATIVE

RULING: MOTION FOR SUMMARY JUDGMENT OF DEFENDANT CHILDREN'S HOSPITAL LOS ANGELES is GRANTED.

MOTION FOR SUMMARY JUDGMENT

Defendant

CHLA moves for summary judgment on Plaintiff's medical malpractice claim on the grounds that CHLA's care and treatment of Plaintiff complied with the standard of care at all times, and thus, CHLA cannot be liable to Plaintiff as a matter of law. (Mot., at p. 5.) Plaintiff does not oppose the motion. (Opp., at p. 1.)

The

Court finds that CHLA has overcome its initial moving burden, and based on Plaintiff's non-opposition, CHLA is entitled to summary judgment. It is well-established that the elements of a claim for professional negligence, including medical malpractice, are the same basic elements as a claim for general negligence: duty, breach, causation, and damages. (*Banerian v. O'Malley* (1974) 42 Cal.App.3d 604, 610–612; *Flowers v. Torrance Memorial Hospital Medical Center* (1994) 8 Cal.4th 992, 997–998.) "The first element, standard of care, is the key issue in a malpractice action and can only be proved by expert testimony, unless the circumstances are such that the required conduct is within the layperson's common knowledge." (*Lattimore v. Dickey* (2015) 239 Cal.App.4th 959, 968 (*Lattimore*); accord *Jambazian v. Borden* (1994) 25 Cal.App.4th 836, 843 (*Jambazian*)). In those cases where a medical specialist is alleged to have acted negligently, the "specialist must possess and use the learning, care and skill normally possessed and exercised by practitioners of that specialty under the same or similar circumstances." (*Lattimore, supra*, 239 Cal.App.4th at p. 968.)

Here,

there is no question that the CHLA-employed members of the CHLA transport team (Michele Pisarsksy, R.N., Syd Nessary, R.T. and Luis Romero, R.T.)(1] had a duty to use the skill, prudence, and diligence commonly possessed and exercised by R.N.s and R.T.s in the neonatal field. "[A] nurse's conduct must not be measured by the standard of care required of a physician or surgeon, but by that of other nurses in the same or similar locality and under similar circumstances." (*Lattimore, supra*, 239 Cal.App.4th at p. 969.) "Just as with physicians and surgeons, however, 'expert opinion testimony is required to prove that a defendant nurse did not meet the standard of care and therefore was negligent, "except in cases where the negligence is obvious to

[laypersons].” (Ibid.)

The

practice of neonatal medicine is not within the common knowledge of laypersons, and thus, expert testimony is necessary here to prove whether the CHLA transport team breached the applicable standard of care. (Willard v. Hagemeister (1981) 121 Cal.App.3d 406, 411 [“Expert evidence in a malpractice suit is conclusive as to the proof of the prevailing standard of skill and learning...”].) CHLA submits the expert testimony of Dr. Denise Suttner, a physician board-certified in neonatology, who opines on the standard of care required of physicians and nursing personnel treating newborns like Plaintiff. Dr. Suttner declares that the care and treatment provided to Plaintiff by the nursing and non-physician members of the CHLA transport team was appropriate and complied with the standard of care in all respects. (Suttner Decl., ¶ 5.) Dr. Suttner further explains that the CHLA transport team timely responded to CHA after a request for transfer and for the entire duration that Plaintiff was in the CHLA transport team’s care, the nursing and non-physician personnel carried out their duties and responsibilities in a manner consistent with the standard of care, including patient monitoring, nursing, and respiratory care. (Id. ¶ 6.)

Based on

the testimony of Dr. Suttner, the Court finds that CHLA has overcome its moving burden of demonstrating that Plaintiff cannot establish the prima facie elements of her professional negligence. As Plaintiff does not oppose this motion, she fails to overcome her responsive burden of raising a triable issue of material fact. Therefore, CHLA’s motion for summary judgment is GRANTED.

Defendant Children’s Hospital Los Angeles to

serve notice of ruling. This tentative ruling (“TR”) shall be the order of the Court unless changed at the hearing and shall by this reference be incorporated into the Minute Order.

TR emailed to counsel and posted to court’s website on 7/31/26 at 11:55 a.m.

[1]

Plaintiff does not dispute that

Dr. Jared Schiff was not an employee or agent of CHLA. (Suttner Decl., ¶ 4(j); Kjar Decl., Exh. C.)